

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4153

By: Hasenbeck of the House

and

Pugh of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to driver licenses; creating a
12 requirement to demonstrate an eighth grade reading
13 level for minors to obtain a driver license;
14 establishing criteria for satisfying reading tester
15 requirements for a driver license for public school
16 students; requiring students under eighteen to
17 complete a reading proficiency test; requiring a plan
18 of remedial reading if assessments are not
19 successfully completed; providing an option for
20 students to take alternative reading proficiency
21 tests if the initial assessment is unsuccessful;
22 allowing students to take an alternative reading test
23 for motorcycle licenses; establishing alternative
24 reading testing sites requirements; requiring school
 districts to provide alternative documentation of
 reading proficiency if applicable; establishing
 alternative documentation requirements; allowing
 students to submit reading proficiency test results
 from other states; requiring the Department of
 Education to approve or disapprove out-of-state test
 results; creating requirement for documentation of
 school enrollment, completion, or lawful excuse for
 minors to obtain a driver license; requiring minors
 to demonstrate reading proficiency at an eighth-grade
 reading level unless excused; establishing exception
 for summer months; establishing documentation
 requirements for students educated by other means;

1 establishing misdemeanor for violations; providing
2 alternate route to obtain driver license for certain
3 employed persons under eighteen; establishing
4 employer fines for falsification; requiring
5 attendance officers to provide documentation;
6 requiring attendance officers to notify Service
7 Oklahoma of certain student withdrawals; requiring
8 notification of license cancellation in certain
9 circumstances; providing exceptions for notice
10 requirements; requiring school districts to provide
11 documentation of reading proficiency to certain
12 enrolled students; defining terms; providing
13 exceptions to reading proficiency requirements;
14 requiring Service Oklahoma to approve forms;
15 providing for codification; providing an effective
16 date; and declaring an emergency.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1210.515A of Title 70, unless
there is created a duplication in numbering, reads as follows:

A. Pursuant to the provisions of paragraph 2 of subsection A of
Section 2 of this act, any person under the age of eighteen (18)
years wishing to apply for a driver license or permit shall
successfully demonstrate a satisfactory reading ability at the
eighth-grade reading level by meeting the following criteria:

1. A student enrolled in a public school shall successfully
complete the reading portion of the statewide assessment
administered pursuant to Section 1210.508 of this title and that is
offered in the eighth grade. Following the administration of this
assessment in the eighth grade, any student not successfully

1 completing the reading portion shall be assigned a plan of remedial
2 reading. Any student not successful in completing the reading
3 portion of the state assessment may take a comparable alternative
4 reading proficiency test in order to satisfy the criteria for a
5 driver license or permit. Alternative reading proficiency tests
6 shall be approved by the State Department of Education. Subsequent
7 successful completion of an alternative reading proficiency test
8 shall serve to satisfy any retake requirement for the reading
9 portion of the state assessment in the eighth grade in the Oklahoma
10 School Testing Program. School districts shall notify, in writing,
11 each student who takes the reading portion of the state assessment
12 for the eighth grade or who takes an alternative reading proficiency
13 test and the student's parent or legal guardian of the results. If
14 the student fails to perform satisfactorily on the test, the notice
15 shall inform the student of the reading proficiency driver license
16 requirement and the school's remediation plan for the student. Upon
17 the student's successful completion of the test, the school shall
18 furnish the student with the documentation needed for the driver
19 license application in Oklahoma;

20 2. Unless alternatively documented according to the provisions
21 of subsection C of this section, students under the age of eighteen
22 (18) years shall successfully complete a reading proficiency test
23 approved by the State Department of Education; and
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1 3. Any student who wishes to apply for a restricted license to
2 operate a motorcycle may take an alternative reading proficiency
3 test, subject to the provisions of this section.

4 B. Alternative reading proficiency tests shall be offered by
5 testing sites, which shall include the public schools at least four
6 times per calendar year, and may include any of the following which
7 choose to participate: the technology center school districts,
8 Regional Education Service Centers, colleges, accredited private
9 schools, and other sites approved by the State Department of
10 Education. A student may take the test as often as wished, subject
11 to the provisions of this section. Testing sites shall provide the
12 first alternative reading proficiency test for each student at no
13 cost. Students may be assessed a fee not to exceed Twenty-five
14 Dollars (\$25.00) by the testing site for each subsequent alternative
15 reading proficiency test taken.

16 C. A school district shall provide for alternative
17 documentation of reading proficiency for the purposes of paragraph 2
18 of subsection A of Section 2 of this act for any student with an
19 Individualized Education Program (IEP) that, at a minimum, is in an
20 area related to reading. The alternative documentation shall be
21 furnished to such student who is performing satisfactorily in
22 reading pursuant to the Individualized Education Program of the
23 student. Parents of disabled students educated pursuant to the
24 provisions of Section 4 of Article XIII of the Oklahoma Constitution

1 may satisfy the requirement of paragraph 2 of subsection A of
2 Section 2 of this act by signing an affidavit that, based upon their
3 best information and belief, their child would qualify for an
4 Individualized Education Program that, at a minimum, is in an area
5 related to reading if enrolled in public school, and that in their
6 judgment their child is performing satisfactorily in reading and is
7 therefore academically qualified to satisfy the requirement of
8 paragraph 2 of subsection A of Section 2 of this act.

9 D. Any person under the age of eighteen (18) who has previously
10 completed and successfully passed a reading proficiency test from
11 another state may submit the results of such test to the State
12 Department of Education for verification and approval. The State
13 Department of Education shall have thirty (30) days from receipt of
14 the reading proficiency results submitted by the person to verify
15 that the reading proficiency requirements from the other state are
16 equivalent or comparable to the reading proficiency requirements
17 established for Oklahoma students pursuant to this section. Upon
18 verification and approval by the State Department of Education, the
19 Department shall furnish the person with the documentation needed
20 for the driver license application in Oklahoma. If the reading
21 proficiency documentation submitted by the person is disapproved by
22 the Department, the person may take an alternative reading
23 proficiency test as provided for in subsection B of this section.

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 6-107.8 of Title 47, unless
3 there is created a duplication in numbering, reads as follows:

4 A. Service Oklahoma shall deny a license, restricted license,
5 or instruction permit for the operation of a motor vehicle to any
6 person under eighteen (18) years of age who does not, at the time of
7 application, present documentation that such person:

8 1. Is a student enrolled in a public or private secondary
9 school, including any technology center school, of this state or any
10 other state;

11 2. Has received a diploma or certificate of completion issued
12 to the person from a secondary school of this state or any other
13 state;

14 3. Is enrolled and making satisfactory progress in a program
15 leading to a certificate of high school equivalency issued by the
16 State Department of Education, or has obtained such certificate;

17 4. Is excused from such requirement pursuant to a lawful excuse
18 as defined in subsection G of this section or due to circumstances
19 beyond the control of the person; or

20 5. Is excused from such requirement pursuant to subsection C of
21 this section; and

22 6. Has successfully passed the criterion-referenced reading
23 test required for all eighth grade students or an alternative
24 reading proficiency test approved by the State Department of

1 Education, pursuant to the provisions of Section 1 of this act,
2 demonstrating reading proficiency at the eighth-grade reading level,
3 unless such student is excused from such requirement pursuant to the
4 provisions of Section 1 of this act. Provided, during the summer
5 months when school is not in regular session, as established by the
6 school district pursuant to Section 1-109 of Title 70 of the
7 Oklahoma Statutes, a person under eighteen (18) years of age may
8 satisfy the documentation requirement of this subsection by
9 providing a notarized written statement from and signed by the legal
10 custodial parent or legal guardian of the person to Service Oklahoma
11 stating that the person completed the immediately previous school
12 year and is enrolled or intends to enroll for the immediately
13 subsequent school year.

14 B. 1. A person under eighteen (18) years of age who is
15 receiving education by other means, including education at home
16 pursuant to Section 4 of Article XIII of the Oklahoma Constitution,
17 shall satisfy the documentation requirement of paragraphs 1, 2, 3,
18 4, and 5 of subsection A of this section by providing a written
19 statement from and signed by the legal custodial parent or legal
20 guardian of the person to Service Oklahoma stating that the person
21 is receiving instruction by other means pursuant to Section 4 of
22 Article XIII of the Oklahoma Constitution.

23 2. Any person who falsifies the information required in such
24 documentation, upon conviction, shall be guilty of a misdemeanor.

1 C. 1. A person under eighteen (18) years of age who does not
2 meet the requirements of paragraphs 1 through 3 of subsection A of
3 this section or the requirements of subsection B of this section may
4 retain or be issued a driver license if:

5 a. the person is employed at least twenty-four (24) hours
6 per week, and

7 b. the employer of the person verifies the employment on
8 a form prescribed by Service Oklahoma.

9 2. Any person who has retained or been issued a driver license
10 pursuant to this subsection who leaves such employment shall have
11 fifteen (15) days from the date of termination of employment to
12 provide verification of employment from a new employer.

13 3. Any employer who falsifies a verification of employment
14 shall be subject to an administrative fine of not more than Fifty
15 Dollars (\$50.00), to be assessed by Service Oklahoma.

16 D. 1. School district attendance officers, upon request, shall
17 provide a documentation of enrollment status form, established and
18 approved by Service Oklahoma, to any person under eighteen (18)
19 years of age who is properly enrolled in a school for which the
20 attendance officer is responsible, for presentation to Service
21 Oklahoma upon application for or reinstatement of an instruction
22 permit, restricted license, or license to operate a motor vehicle.

23 2. Except as provided in subsection E of this section, whenever
24 a person over fourteen (14) years of age and under eighteen (18)

1 years of age, who has a driver license or permit issued by Service
2 Oklahoma, withdraws from school, the attendance officer shall notify
3 Service Oklahoma of such withdrawal through a documentation of
4 enrollment status form.

5 3. Within fifteen (15) working days of the receipt of such
6 notice, Service Oklahoma shall provide written notice to the person,
7 by first class, postage prepaid mail, that the driver license of the
8 person will be canceled thirty (30) days following the date the
9 notice to the person was sent, unless documentation of compliance
10 with the provisions of this section is received by Service Oklahoma
11 before such time. After the thirty-day period, Service Oklahoma
12 shall cancel the driving privileges of the person.

13 E. When the withdrawal from school of a person under eighteen
14 (18) years of age is:

15 1. Due to circumstances beyond the control of the person;

16 2. Pursuant to any lawful excuse; or

17 3. For the purpose of transfer to another school, including

18 education at home pursuant to Section 4 of Article XIII of the

19 Oklahoma Constitution, as confirmed in writing by the legal

20 custodial parent or legal guardian of the person,

21 no notice as required by subsection D of this section shall be sent

22 to Service Oklahoma, or, if sent, such notice shall be disregarded

23 by Service Oklahoma. If the person is applying for a driver

24 license, restricted driver license, or instruction permit, the

1 attendance officer shall provide the person with documentation to
2 present to Service Oklahoma to excuse the person from the
3 requirements of this section.

4 F. Every school district shall, upon request, provide
5 documentation of reading proficiency for any person under eighteen
6 (18) years of age enrolled in such school district by certifying
7 passage of a reading examination pursuant to the provisions of
8 Section 1 of this act.

9 G. As used in this section:

10 1. "Withdrawal" means more than ten (10) consecutive days, or
11 parts of days, of unexcused absences or fifteen (15) days, or parts
12 of days, total unexcused absences during a single semester;

13 2. "Lawful excuse" means absence from school pursuant to any
14 valid physical or mental illness or pursuant to any legal excuse as
15 provided in Section 10-105 of Title 70 of the Oklahoma Statutes;
16 provided, however, the meaning of such term shall not include
17 marriage;

18 3. "Circumstances beyond the control of the person" shall not
19 include marriage, suspension, or expulsion from school, or
20 imprisonment in a jail, penitentiary, or other correctional
21 institution;

22 4. "Documentation of enrollment status form" means the document
23 established and approved by Service Oklahoma to substantiate
24 information concerning the eligibility of a person under eighteen

1 (18) years of age to apply for or to retain a license or permit to
2 drive. Such documentation shall not include any information which
3 is considered an education record pursuant to the Family Education
4 Rights and Privacy Act, 20 U.S.C., Sections 1232g through 1232i,
5 unless compliance is made with the restrictions regarding disclosure
6 of the information; and

7 5. "Documentation of reading proficiency" means information
8 provided by a school authorized by subsection B of Section 1 of this
9 act to certify the eligibility of a person under eighteen (18) years
10 of age to apply for a license or permit based on passage of a
11 reading proficiency test approved by the State Department of
12 Education, or pursuant to the alternative documentation criteria
13 provided in subsection C of Section 1 of this act. Such
14 documentation shall not include any information which is considered
15 an education record pursuant to the Family Education Rights and
16 Privacy Act, 20 U.S.C., Sections 1232g through 1232i, unless
17 compliance is made with the restrictions regarding disclosure of the
18 information.

19 H. The provisions of this section shall be inapplicable with
20 respect to any person under eighteen (18) years of age upon whom
21 rights of majority have been conferred pursuant to Sections 91
22 through 94 of Title 10 of the Oklahoma Statutes.

23 I. Service Oklahoma shall establish and approve documentation
24 forms and certificates required by this section for use by school

1 districts to comply with the provisions of this section. Upon
2 establishment and approval of such forms and certificates, Service
3 Oklahoma shall notify each school district and the State Board of
4 Education of the content thereof.

5 SECTION 3. This act shall become effective July 1, 2026.

6 SECTION 4. It being immediately necessary for the preservation
7 of the public peace, health or safety, an emergency is hereby
8 declared to exist, by reason whereof this act shall take effect and
9 be in full force from and after its passage and approval.

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11 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
12 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.

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